

Civil Procedure

STEPHEN E. SACHS

Harvard Law School

HLS 1000

W.TH.F 8:30–9:50

WCC Room 1023

<http://bit.ly/4lmS6xJ>

Office hours:

TH.F 10:40–11:40

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OVERVIEW

Welcome! This course meets on **Wednesday, Thursday, and Friday** mornings in **WCC Room 1023**. (There are also three Friday afternoon makeup sessions, held in the usual room and noted on the schedule below.)

Class starts promptly at 8:30 a.m. You should bring to the first class that day's assigned readings, and you should also complete beforehand the first set of readings and multiple-choice questions, as discussed below.

MATERIALS

The main text is **Joseph W. Glannon, Andrew M. Perlman, Peter Raven-Hansen & Jennifer Reynolds, *Civil Procedure: A Coursebook* (5th ed. 2025)**. Please make sure you buy the updated fifth edition of the book! Page numbers and readings are keyed to this one, so older editions won't help. And I *strongly* recommend a printed or downloadable coursebook rather than an online version, which you won't be able to access during the exam.

Other materials are on the course website. Most, but not all, are included in a coursepack to save you printing costs.

A few notes on the materials:

- (1) All of you did well in college and are used to long readings. *Don't be fooled.* Legalese is a foreign language, and the 1L year is an immersion course. Even if you're familiar with legal sources, each day's readings will take substantially longer than you expect.
- (2) This course may involve more reading than average, and we'll hit the ground running. *I urge you to read ahead*, even before class begins, and to keep reading ahead if you can. The first semester can be bracing, but by the end you'll have learned more law than you knew existed beforehand.
- (3) You'll likely encounter words in the readings that you don't know. *Look them up.* It's better to spend two minutes searching Google or *Black's Law Dictionary* (available on Westlaw) than to spend an hour staring at jargon.
- (4) Sometimes it's hard to tell which parts of the material are relevant. New 1Ls tend to highlight everything in a case or statute, which really means that they've highlighted nothing. That's okay: just like legal writing, *legal reading is a skill you learn over time.* There's no royal road to geometry, and no shortcut to reading cases. The best way to learn is to keep doing it, again and again, as lawyers in practice do all the time. Your professors aren't hiding the ball; we're trying to teach you how to find it on your own.
- (5) The textbook isn't always right. Most points in law are settled, but on others, even experts disagree. In the end, *the primary sources control.*
- (6) Many procedural doctrines are quite old; others were shaped by older practices. When you read historical materials, *the goal is to help you learn the law as it's practiced today.* My exams never ask questions like "How would this case have been decided in 1872?" They only test on the law as it's practiced on the date of the exam. But knowing where the rules came from helps explain how they work today.
- (7) Civil procedure is cumulative: each new topic builds on the last. If we finish a unit and you really don't understand it, don't lose hope, but just *keep trying.* Go back over the material, talk through it with friends, talk to the student teaching assistants, come see me, or all of the above. Don't just wait to catch up at the end of the course! There won't be enough time, and the next unit will be that much more confusing—like learning calculus without knowing algebra, or algebra without knowing how to add.

Feel free to use whatever third-party supplements you find helpful. A few useful study guides include Joseph W. Glannon, *Civil Procedure: Examples & Explanations* (9th ed. 2023), Joseph W. Glannon, *The Glannon Guide to Civil Procedure* (5th ed. 2023), and Richard D. Freer, *Civil Procedure* (5th

ed. 2021). But be careful: not every supplement is equally trustworthy or has been updated to reflect changes in the law. Online study services tend to be particularly bad—and you won’t be able to access the Internet during the exam, so don’t get too reliant on anything you can’t read offline. Civil procedure is now part of the Multistate Bar Exam, so bar study materials may turn out to be useful in this course too; some of them are available at <http://www.nathenson.org/courses/civpro/mbe-resources>.

The most influential treatises on civil procedure are Wright & Miller, *Federal Practice & Procedure* (available on Westlaw), and Moore’s *Federal Practice—Civil* (available on Lexis). These treatises go through the Federal Rules one by one, discussing relevant cases along the way. Except for a few passages that I’ve assigned, you shouldn’t need to consult them in this course, other than to satisfy curiosity. But once you’re out in practice, they’ll be your most reliable guides. If you’re interested in the human stories behind the cases we read, there’s useful background in *Civil Procedure Stories* (Kevin M. Clermont ed., 2d ed. 2008).

MULTIPLE-CHOICE QUESTIONS

Before each day of class begins, you’ll have to complete one or more multiple-choice questions, on the website under “Quizzes.” These questions are wholly ungraded, and getting them wrong has no impact on you whatsoever. But whether you submit your answers on time *is* part of your grade, with partial credit available for those who submit them late, up until the start of the exam. (In case of emergencies, just contact me.)

The questions are an opportunity for you to test your knowledge and for me to learn which areas need more attention. Some of them are quite hard; I wouldn’t expect you to get them all right, even if you’ve studied carefully! You should feel free to work on them alone or in groups, whatever helps you learn best. The questions are also online in PDF form, in case that’s useful.

ASSIGNMENTS

This course includes several take-home assignments, listed on the schedule below. Like the nightly multiple-choice questions, the answers themselves are ungraded, but submitting your answers on time *is* part of your grade. So

you're perfectly free—indeed, encouraged!—to discuss them with your fellow students, to work on them in study groups, and so on. Again, partial credit will be available for those who submit them late, up until the start of the exam; in case of emergencies, just contact me.

CLASS PARTICIPATION

Attendance in this class is required, and class participation via cold-calling is part of the grade. Thinking on your feet is an important legal skill, and cold-calling provides an ongoing measure of your knowledge and performance, lessening the impact of the single in-class exam. (It also ensures that we hear from a broad range of students, not all of whom are equally eager to raise their hands.)

Before each class, I'll print out a computer-generated list of students to be cold-called. The algorithm departs from pure randomness only to equalize the burden across students, giving everyone a fair opportunity to be quizzed over the course of the semester. Someone who hasn't yet been cold-called will get twelve times as many "lottery tickets" as someone who's been cold-called once, 144 times as many as someone who's been cold-called twice, and so on. This means that being chosen on a given day makes you less likely to be chosen in future—but it's no guarantee, and your name could still pop up several days in a row. (You can see how this works by reviewing the sample Excel spreadsheet on the website.)

Class participation grades are based solely on the quality of your answers when cold-called, not on how often you ask questions in class or sign up for office hours. I'll of course reserve some time for questions—and you should feel free to ask questions by email—but these have no impact on your grade. If you don't know an answer when cold-called, just say so! That way I can frame the question in a better way, to elicit what you do know.

After each class, I'll record my contemporaneous impressions of students' cold-call performance on a numeric scale, adjusting for the difficulty of the questions asked. Being absent without excuse on a day when your name is called means losing the points for that day. Scores are averaged across the entire semester, and at the end of the semester each individual average is curved against the class as a whole. (So if you think you "bombed" one day's questions, don't worry overmuch; it won't have a large impact overall.)

Each of you has three free “passes” to get out of being on call on a given day. You can use a pass for any reason or no reason. To do so, just fill out the pass form (linked from the website) **by 8 a.m. on the day of class**, so that I have time to adjust the cold-calling list. You don’t have to explain why you’d like to use a pass, and you probably shouldn’t. (Some previous requests fell in the “too much information” category!)

The first day’s cold-calls are for illustrative purposes only; they don’t count for a grade, so please don’t worry about that, and there’s no need to use a pass to get out of them either.

For emergencies or other special circumstances, don’t hesitate to contact me directly. In particular, no one should feel obliged to come to class unwell. If you’re feeling ill, please just drop me a line, and you’ll be excused without using up a pass. (And let me know if you’re sufficiently unwell to need an extension on the multiple-choice questions too.) Make sure to contact the Dean of Students’ Office to see if your absence qualifies for a class recording. Also, no pass is needed if you have a conflict with a Friday makeup session; just email me in advance to explain the conflict and you’ll be excused.

LAPTOPS

Given the many offerings of the Internet, such as <https://bit.ly/3LEqfJq>, **laptop use is not permitted in this class**. Any student with a disability that interferes with taking notes by hand should contact Accessibility Services at accessibility@law.harvard.edu to apply for an exception from this policy as a reasonable accommodation. Please also remember to silence and put away cell phones during class.

OFFICE HOURS

My office hours this semester will be held on Thursdays and Fridays, 10:40–11:40 a.m., in Lewis 311. A **sign-up sheet** with 20-minute blocks is linked from the website. If you’d like to arrange an appointment at another time, just email me. You should also feel free to sign up in groups, to invite other students to join you during your block, and so on.

Please don’t worry about a question sounding silly. If it’s troubling you enough for you to send an email or to sign up for office hours, it’s worth asking and getting cleared up!

(Also: HLS will pay for lunches for faculty members and groups of four students or more. While you should feel *no* obligation to see any more of me than is required by the prescribed number of credit-hours, I'm always happy to meet for lunch. Just email me to propose a time.)

TEACHING ASSISTANTS

Six teaching assistants are available to help you this year, all of whom have taken this course before. Their names and emails are listed on the website. Feel free to contact any of them with questions or concerns! There's also a weekly TA office hours session; see the website for details.

EXAM AND GRADING

This class has a **four-hour in-class final exam**. It will include one or more issue-spotters, and it may have multiple-choice or short-answer questions along with additional essays. **The exam is strictly limited to 2500 words: additional words will not be read.** (This isn't a punishment, but a way to be fair to the students who properly cut down their answers to stay within the limit.) Beyond that, brevity is appreciated.

As noted above, the exam will test only on the law as practiced as of the date of its first administration. If a particular rule or statutory provision hasn't received any substantial attention in class or in the textbook, it's unlikely to be tested. That said, the exam might also require a close reading of a particular case, statute, or rule, in which case it'd be designed to afford the time required.

You'll need to bring your textbook and all coursepack materials with you, because some of the questions may ask about them. The exam is fully open-book and open-note. To address the era of AI, though, the "exam mode" is "CLOSED." That is, you may use any **paper** materials you have with you, including the textbook, other people's textbooks, third-party supplements, the coursepack, coursepacks for other classes, your own notes, other people's notes, commercial outlines, legal dictionaries, Swedish dictionaries, the *Grundgesetze der Arithmetik*—anything you might find useful.

That said, you're **not** allowed (1) to use any electronic materials (the exam software will prevent you from accessing other applications or material saved on your hard drive), (2) to cut-and-paste information from external

documents, (3) to edit your exam after submitting it, (4) to use large language models or other artificial-intelligence software, or (5) to obtain new information once the test begins, such as by accessing the Internet or calling your mom. *Your exam must be entirely your own work.*

To prepare, you should consider creating an outline and table of contents which you can print and bring along; you shouldn't plan to consult it at length, but it can be an aid if needed. (Lawyers at oral argument often bring along tabbed copies of the record for similar reasons.) The Registrar may have various rules on which devices you may bring into the exam room in addition to your laptops; for example, it may restrict Internet-capable devices even if set to "airplane mode." Consult those rules and plan your study strategies accordingly. Once you're finished with the exam, please don't share your answers or discuss it with others until all submissions have been received, as some students may be taking the exam at different times.

Past exams and model answers are on the website. Use caution when reading them! Some past exams were to be completed in more or less time; some model answers were written before recent statutes or Supreme Court decisions; and some questions that seem overwhelming to you now might simply address topics that we haven't yet covered. So I tend to discourage students from looking at the old exams until close to the end of the semester.

Grades will be assigned according to the Law School's standard rules, based on the final exam (75%), cold-call answers (15%), and the timely completion of assignments (5%) and multiple-choice questions (5%).

SCHEDULE OF READINGS

Meeting times and readings for the course are listed below. (Friday makeup sessions are shown in **borders**. My apologies for the occasional double-headers; makeup times are chosen by the Registrar's office.)

You should be ready to discuss each of the required readings in class. When preparing for the exam, though, you can generally restrict your outlining to the main cases. It's usually unnecessary to outline 'squib' cases discussed only in notes, unless they receive meaningful attention in class. As for provisions of the Federal Rules or the U.S. Code, you only need to read the statutory text, not "historical and revision notes" or similar material. A quick glossary:

GPRR	Glannon, Perlman, Raven-Hansen & Reynolds (5th ed.)
U.S. Const.	the U.S. Constitution
U.S.C.	the U.S. Code (a set of statutes enacted by Congress and recompiled based on subject matter)
Rule	Federal Rule of Civil Procedure (adopted by the Supreme Court, as authorized by 28 U.S.C. § 2072)
Fed. R. App. P.	Federal Rule of Appellate Procedure (same)
Fed. R. Evid.	Federal Rule of Evidence (same)
M.G.L.	Massachusetts General Laws
Mass. R. Civ. P.	Massachusetts Rules of Civil Procedure

Some readings are *set off in blue*; these are for skimming, not reading carefully. You really only need to skim these; if we discuss them in class, it'll be for general points, not for details. Instructions are *in green*. Anything not in the coursepack is available online; some URLs are provided for convenience.

Other readings, *in gray*, are marked “optional.” They may help you gain a broader perspective on the course, but they’re purely enrichment, for reading in your copious free time. (Preferably in a good armchair by the fire, a snifter of brandy and your loyal spaniel at your side.)

INTRODUCTION

1 Sept. 3 (w): Background

- 1.1 Medieval Writs. <https://bit.ly/3xFfWBH>
- 1.2 GPRR xxvii–xxix, 3–40.
- 1.3 U.S. Const. art. III.
- 1.4 28 U.S.C. § 2072.
- 1.5 Rules 1, 2, 81(b).
 - 1.5.1 28 U.S.C. §§ 1, 41, 101.
 - 1.5.2 District Court Map. <https://bit.ly/3XLWspD>
 - 1.5.3 28 U.S.C. §§ 1251, 1254, 1257, 1291, 1294.
 - 1.5.4 Federal Rules of Civil Procedure (table of contents), Rules 79, 82.
 - 1.5.5 Documents from *McBride v. CSX Transp., Inc.* <https://bit.ly/3VETnFe>

Optional:

- District of Massachusetts, Step by Step: A Simple Guide to Filing a Civil Action (Dec. 28, 2020), <https://bit.ly/3fv9Vet>.

SUBJECT-MATTER JURISDICTION

2 Sept. 4 (TH): Diversity jurisdiction

- 2.1 U.S. Const. amend. XIV, § 1.
- 2.2 An Explanation of Domicile. <https://bit.ly/3xG2I7F>
- 2.3 28 U.S.C. §§ 1332(a)–(c), (e).
 - 2.3.1 28 U.S.C. §§ 1359, 1920.
 - 2.3.2 Rule 7.1(a)(2).
- 2.4 GPRR 43–45, 55 (*first portion of Sec. III*).
 - 2.4.1 *Orin S. Kerr, How to Read a Legal Opinion: A Guide for New Law Students, 11 Green Bag 2d 51 (2007)*. <https://bit.ly/4jnLQEL>
- 2.5 *Strawbridge v. Curtis*, 7 U.S. (3 Cranch) 267 (1806).
- 2.6 GPRR 58–59 (*note 1 only*), 65–66 (*start at note 4*).
- 2.7 *Hertz Corp. v. Friend*, 559 U.S. 77 (2010).
- 2.8 GPRR 73–92.

3 Sept. 5 (F): Federal questions and removal

- 3.1 28 U.S.C. §§ 1331, 1333, 1338(a).
- 3.2 GPRR 93–122 (*end with note 5*), 122–24 (*notes 7–9*), 125–27.
 - 3.2.1 *Complaint, Federated Mut. Ins. Co. v. Williams Trull Co.*, 838 F. Supp. 2d 370 (M.D.N.C. 2011). <https://bit.ly/3W3Dny0>
- 3.3 28 U.S.C. §§ 1441(a)–(c), (f), 1446(a)–(d), 1447, 1454(a)–(b).
 - 3.3.1 *M.G.L. ch. 223, § 19*.
- 3.4 GPRR 129–30 (*with start of Sec. II*), 135–45.
- 3.5 Notice of Removal, *Lohan v. Perez*, 924 F. Supp. 2d 447 (E.D.N.Y. 2011). <https://bit.ly/3VFmGr2>

Optional:

- Anthony J. Bellia Jr., *The Origins of Article III “Arising Under” Jurisdiction*, 57 Duke L.J. 263 (2007).
- Ann Woolhandler & Michael G. Collins, *Federal Question Jurisdiction and Justice Holmes*, 84 Notre Dame L. Rev. 2151 (2009).
- Lumen N. Mulligan, *You Can’t Go Holmes Again*, 107 Nw. U. L. Rev. 207 (2012).
- *Lohan v. Perez*, 924 F. Supp. 2d 447 (E.D.N.Y. 2013).

SERVICE, PERSONAL JURISDICTION, VENUE

4 Sept. 10 (w): Service of process

- 4.1 GPRR 149–50, 317–18.
- 4.2 Rules 3, 4(a)–(h), (l)–(m). (*Skim waiver form after Rule 4; Rule 5.*)
 - 4.2.1 28 U.S.C. § 1746.
 - 4.2.2 M.G.L. ch. 223, § 20; id. ch. 223A, § 6; Mass. R. Civ. P. 4(d)–(e).
 - 4.2.3 Mass.gov, *Completing Service of Process*. <https://bit.ly/37Mdj05>
 - 4.2.4 *Summons and Return*, McBride v. CSX Transp., Inc. (*review*).
- 4.3 U.S. Const. amend. v; id. amend. xiv, § 1.
- 4.4 GPRR 318–19.
 - 4.4.1 Mullane v. Cent. Hanover Bank & Tr., 339 U.S. 306 (1950).
 - 4.4.2 GPRR 326–35, 346 (*image*).
- 4.5 GPRR 335–36, 346–48 (*start at note 7*), 350–51.

Assignment 1 released

Optional:

- *Water Splash, Inc. v. Menon*, 581 U.S. 271 (2017).

(*Note: The next few classes involve some of the most difficult material in the course; please consider reading ahead.*)

5 Sept. 11 (TH): Background on personal jurisdiction

- 5.1 GPRR 149–50 (review).
- 5.2 Rule 4(k).
 - 5.2.1 M.G.L. ch. 223A, §§ 2–4.
 - 5.2.2 *Roch v. Mollica*, 481 Mass. 164 (2019).
- 5.3 GPRR 299–300, 313–15 (*start at “B”*).
- 5.4 U.S. Const. art. iv, § 1.
 - 5.4.1 28 U.S.C. § 1738.
- 5.5 *D’Arcy v. Ketchum*, 52 U.S. (11 How.) 165 (1850).
- 5.6 *Lafayette Ins. Co. v. French*, 59 U.S. (18 How.) 404 (1855).
- 5.7 GPRR 150–66.

Optional:

- Wendy Collins Perdue, *What’s “Sovereignty” Got to Do with It? Due Process, Personal Jurisdiction, and the Supreme Court*, 63 S.C. L. Rev. 729 (2012).

- Stephen E. Sachs, *Full Faith and Credit in the Early Congress*, 95 Va. L. Rev. 1201 (2009).
- Stephen E. Sachs, *Pennoyer Was Right*, 95 Tex. L. Rev. 1249 (2017).
- Stephen E. Sachs, *The Unlimited Jurisdiction of the Federal Courts*, 106 Va. L. Rev. 1703 (2020).

6 Sept. 12 (F): Specific jurisdiction

- 6.1 GPRR 166–89 (*through end of majority opinion*, 193–98).
- 6.2 *Bristol-Myers Squibb Co. v. Super. Ct.*, 582 U.S. 255 (2017).
- 6.3 *Ford Motor Co. v. Mont. Eighth Jud. Dist. Ct.*, 141 S. Ct. 1017 (2021).
- 6.4 GPRR 239–43.

Optional:

- Stephen E. Sachs, *Originalism and Personal Jurisdiction*, Volokh Conspiracy (Oct. 6, 2020), <https://bit.ly/3ABmUnb>.
- Stephen E. Sachs, *Originalism and Personal Jurisdiction: Some Hard Questions*, Volokh Conspiracy (Dec. 9, 2020), <https://bit.ly/3qNrtXq>.

7 Sept. 12 (F) (3:45–5:05 p.m.): The “stream of commerce”
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- 7.1 GPRR 211–12.
- 7.2 *Asahi Metal Indus. Co. v. Super. Ct.*, 480 U.S. 102 (1987) (*syllabus*).
- 7.3 *J. McIntyre Mach., Ltd. v. Nicaastro*, 564 U.S. 1058 (2011).
- 7.4 The Marks Rule. <https://bit.ly/4cKb3G1>
- 7.5 GPRR 221–26 (*end before note 5*), 228 (*note 7*).

Optional:

- Ryan C. Williams, *Questioning Marks: Plurality Decisions and Precedential Constraint*, 69 Stan. L. Rev. 795 (2017).
- Brief of Professor Richard M. Re as Amicus Curiae in Support of Neither Party, *Hughes v. United States*, 138 S. Ct. 1765 (2018), <https://bit.ly/2W4xaSQ>.

8 Sept. 17 (w): “Effects,” the Internet, and general jurisdiction

- 8.1 GPRR 198–200 (*notes 1–2*).
- 8.2 *Walden v. Fiore*, 571 U.S. 277 (2014).
8.2.1 Johnson v. Griffin, 85 F.4th 429 (6th Cir. 2023).
- 8.3 GPRR 200–02 (*note 3*).
- 8.4 GPRR 254–59.
- 8.5 *Daimler AG v. Bauman*, 571 U.S. 117 (2014).
- 8.6 GPRR 267–69 (*stop before note 5*), 270–72.

Assignment 1 due

Optional:

- Wright & Miller, Federal Practice and Procedure § 1067.6.
- Cassandra Burke Robertson, *The Inextricable Merits Problem in Personal Jurisdiction*, 45 U.C. Davis L. Rev. 1301 (2012).
- Alan M. Trammell & Derek E. Bambauer, *Personal Jurisdiction and “the Interwebs,”* 100 Cornell L. Rev. 1129 (2015).
- Lea Brilmayer & Kathleen Paisley, *Personal Jurisdiction and Substantive Legal Relations: Corporations, Conspiracies, and Agency*, 74 Cal. L. Rev. 1 (1986).
- Brief of Professor Stephen E. Sachs as Amicus Curiae in Support of Petitioner, *BNSF Ry. Co. v. Tyrrell*, 581 U.S. 402 (2017) (No. 16-405), <https://bit.ly/3ejVWot>.

9 Sept. 18 (TH): Actions *in rem*; service; consent

- 9.1 Actions *In Personam* and *In Rem*. <https://bit.ly/4cN0WRh>
- 9.2 Rule 4(n).
9.2.1 Mass. R. Civ. P. 4.1.
- 9.3 GPRR 272–75.
- 9.4 *Shaffer v. Heitner*, 433 U.S. 186 (1977).
- 9.5 GPRR 276–78.
9.5.1 Zoe Tillman, Judge Orders Sprint to Pay Terror Victims’ Families, *Blog of Legal Times* (Aug. 10, 2011). <https://bit.ly/4jkyM20>
- 9.6 GPRR 278–92, 294–95.
9.6.1 Mallory v. Norfolk S. Ry. Co., 143 S. Ct. 2028 (2023).
- 9.7 GPRR 296–97.
9.7.1 Fuld v. Palestine Liberation Org., 145 S. Ct. 2090 (2025).

Optional:

- *62 Cases of Jam v. United States*, 340 U.S. 593 (1951).
- *Tickle v. Barton*, 95 S.E.2d 427 (W. Va. 1956).
- *Grace v. MacArthur*, 170 F. Supp. 442 (E.D. Ark. 1959).
- *United States ex rel. Mayo v. Satan & His Staff*, 54 F.R.D. 282 (W.D. Pa. 1971).
- Brief of Stephen E. Sachs as *Amicus Curiae* in Support of Neither Party, *Mallory v. Norfolk S. Ry. Co.*, 143 S. Ct. 2028 (2023) (No. 21-1168), <https://bit.ly/3Q30V0g>.
- Brief of Stephen E. Sachs as *Amicus Curiae* in Support of Petitioners, *Fuld v. Palestine Liberation Org.*, 145 S. Ct. 2540 (2025) (No. 24-20), <https://ssrn.com/id=5125935>.
- Stephen E. Sachs, *Dormant Commerce and Corporate Jurisdiction*, 2023 S. Ct. Rev. 213. <https://ssrn.com/id=4680013>

10 Sept. 19 (F): Venue.

- 10.1 28 U.S.C. §§ 1390, 1391(a)–(d), 1400, 1404, 1406.
- 10.2 GPRR 355–84.

Optional:

- *TC Heartland LLC v. Kraft Foods Group Brands LLC*, 581 U.S. 258 (2017).

11 Sept. 19 (F) (3:45–5:05 p.m.): *Forum non conveniens*; forum selection.

- 11.1 M.G.L. ch. 223A, § 5.
- 11.2 GPRR 384–85.
- 11.3 *Piper Aircraft Co. v. Reyno*, 454 U.S. 235 (1981).
- 11.4 GPRR 394–401, 208–09 (*notes 1–2*).
- 11.5 *Atl. Marine Constr. Co. v. U.S. Dist. Ct.*, 571 U.S. 49 (2013).

Assignment 2 released

Optional:

- Brief of Professor Stephen E. Sachs as *Amicus Curiae* in Support of Neither Party, *Atl. Marine Constr. Co. v. U.S. Dist. Ct.*, 571 U.S. 49 (2013) (No. 12-929). <https://bit.ly/2WgQZH0>

- Stephen E. Sachs, *Five Questions After Atlantic Marine*, 66 Hastings L.J. 761 (2014).
- Stephen E. Sachs, *The Forum Selection Defense*, 10 Duke J. Const. L. & Pub. Pol'y 1 (2014).
- Stephen E. Sachs, *How Congress Should Fix Personal Jurisdiction*, 108 Nw. U. L. Rev. 1301 (2014).

Sept. 24 (w): Rosh Hashanah II

PLEADING

12 Sept. 25 (TH): Notice pleading and *Twombly*

12.1 Pleading and Claims. <https://bit.ly/4eGBPRT>

12.2 GPRR 405–07.

12.2.1 GPRR 407–12 (stop after the first paragraph of III).

12.2.2 Samuel L. Bray, The Parable of the Forms, 93 St. John's L. Rev. 623 (2019).

12.3 Rules 7–11.

12.3.1 Complaint, McBride (review); Complaint, Federated (review).

12.3.2 Rules 12(b), 56.

12.4 GPRR 413 (*Figure 13-1*), 418–20 (*notes 6–7*), 421–26, 499–501, 522–23.

12.5 *Ryan v. Mary Immaculate Queen Ctr.*, 188 F.3d 857 (7th Cir. 1999).

12.6 *Bell Atl. Corp. v. Twombly*, 550 U.S. 544 (2007).

12.7 GPRR 427–29.

Optional:

- Stephen N. Subrin, *How Equity Conquered Common Law: The Federal Rules of Civil Procedure in Historical Perspective*, 135 U. Pa. L. Rev. 909 (1987).

Sept. 26 (F): No class

13 Oct. 1 (w): From *Twombly* to *Iqbal*

13.1 *Ashcroft v. Iqbal*, 556 U.S. 662 (2009).

13.2 GPRR 438–40.

13.3 *In re Text Messaging Antitrust Litig.*, 630 F.3d 622 (7th Cir. 2010).

13.4 *Mehta v. Beaconridge Improvement Ass’n*, 432 F. App’x 614 (7th Cir. 2011).

13.4.1 Turkmen v. Hasty, 789 F.3d 218 (2d Cir. 2015).

13.4.2 Johnson v. City of Shelby, 574 U.S. 10 (2014) (*per curiam*).

13.5 GPRR 448–52.

Optional:

- Edward A. Hartnett, *Taming Twombly, Even After Iqbal*, 158 U. Pa. L. Rev. 473 (2010).
- Edward A. Hartnett, *Taming Twombly: An Update After Matrixx*, 75 Law & Contemp. Probs., no. 1, 2012, at 37.
- Shirin Sinnar, *The Lost Story of Iqbal*, 105 Geo. L.J. 379 (2017).
- Second Amended Complaint & Jury Demand, *Elmaghraby v. Ashcroft*, 04-CV-1809 (E.D.N.Y. Oct. 20, 2005). <https://bit.ly/450qSs2>

Oct. 2 (TH): Yom Kippur**14 Oct. 3 (F): Default; motion to dismiss**

14.1 GPRR 453–55.

14.2 Rules 54(a), (c), 55.

14.2.1 Complaint, Virgin Records Am., Inc. v. Lacey, 510 F. Supp. 2d 588 (S.D. Ala. 2007) (No. 06–639). <https://bit.ly/3L7GeiX>

14.3 GPRR 455–64.

14.4 Rules 12, 78; Fed. R. Evid. 201.

14.4.1 Dippin’ Dots, Inc. v. Frosty Bites Distrib., LLC, 369 F.3d 1197 (11th Cir. 2004).

14.5 GPRR 464–74.

15 Oct. 3 (F) (3:45–5:05 p.m.): Answering the complaint
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15.1 Rules 8, 11–12 (*review*).

15.1.1 GPRR 474–78.

15.2 GPRR 478–81.

15.2.1 Answer, McBride (review).

15.2.2 28 U.S.C. § 1658.

15.2.3 Fed. R. Evid. 301–302.

15.3 GPRR 481–82, 486 (*Q.1*), 487 (*Q.3*), 487–89 (*Q.5–6*), 492 (*Q.1*), 493–94, 496–97.

Assignment 2 due

16 Oct. 8 (w): Amending pleadings

16.1 Rule 15.

16.2 GPRR 525–64.

16.2.1 Herrera v. Cleveland, 8 F.4th 493 (7th Cir. 2021).

PARTIES, JOINDER, CLASS ACTIONS

17 Oct. 9 (TH): Parties; basic joinder

17.1 Rules 13–14, 17–18, 20–21, 25, 42.

17.2 GPRR 567–74.

17.2.1 GPRR 575–79.

17.3 GPRR 579–83, 587 (*notes 1–3*), 588–605.

Optional:

- *Hall v. Hall*, 138 S. Ct. 1118 (2018).

18 Oct. 10 (F): Complex joinder

18.1 Rules 19, 22, 24.

18.2 GPRR 607–21.

18.2.1 28 U.S.C. § 2403; Rule 5.1.

18.3 28 U.S.C. §§ 1335, 1397, 2361.

18.4 GPRR 627–34.

Optional:

- Caleb Nelson, *Intervention*, 106 Va. L. Rev. 271 (2020).

19 Oct. 15 (w): Supplemental jurisdiction

- 19.1 GPRR 671–85.
- 19.2 *Owen Equip. & Erection Co. v. Kroger*, 437 U.S. 365 (1978).
- 19.3 GPRR 690–94.
- 19.4 28 U.S.C. § 1367.
- 19.5 GPRR 694–700.
- 19.5.1 *Exxon Mobil Corp. v. Allapattah Servs., Inc.*, 545 U.S. 546 (2005).
- 19.6 GPRR 701–05.

20 Oct. 16 (TH): Class actions

- 20.1 Rule 23.
- 20.2 GPRR 635–48.
- 20.3 *Gen. Tel. Co. v. Falcon*, 457 U.S. 147 (1982).
- 20.4 *Wal-mart Stores v. Dukes*, 564 U.S. 338 (2011).

Optional:

- Geoffrey Shaw, *Class Ascertainability*, 124 Yale L.J. 2354 (2015).
- Linda S. Mullenix, *Ending Class Actions as We Know Them*, 64 Emory L.J. 399 (2014).

21 Oct. 17 (F): Class action settlements, jurisdiction

- 21.1.1 *In re Subway Footlong Mktg. & Sales Practices Litig.*, 859 F.3d 551 (7th Cir. 2017).
- 21.2 GPRR 665–70.
- 21.3 28 U.S.C. §§ 1332(d), 1453, 1711–1714.
- 21.4 Edward F. Sherman, *Class Actions After the Class Action Fairness Act of 2005*, 80 Tul. L. Rev. 1593 (2006).
- 21.4.1 28 U.S.C. § 1407(a)–(b).
- 21.5 Overview of Multidistrict Litigation.
- 21.5.1 *Pending Amendment to Rule 16.1*.
- 21.5.2 Abbe R. Gluck, *Unorthodox Civil Procedure*, 165 U. Pa. L. Rev. 1669 (2017).
- 21.5.3 Elizabeth Chamblee Burch & Margaret S. Williams, *Perceptions of Justice in Multidistrict Litigation*, 107 Cornell L. Rev. 1835 (2022).

Optional:

- Chamberlain Objection, *Delacruz v. CytoSport, Inc.*, No. 4:11-cv-03532 (N.D. Cal. May 15, 2014).

- James Grimmelmann, *Future Conduct and the Limits of Class-Action Settlements*, 91 N.C. L. Rev. 387 (2012).
- *Home Depot v. Jackson*, 139 S. Ct. 1743 (2019).

DISCOVERY

22 Oct. 22 (w): Discoverable material

- 22.1 Rule 11 (review).
- 22.2 GPRR 709–11.
- 22.3 ABA Model Rule of Professional Conduct 4.2.
- 22.4 Rule 26(b)–(c).
- 22.5 GPRR 751–52.
 - 22.5.1 *Fed. R. Evid. 103, 104(a)–(c), (e), 105, 401–403, 408–411, 601–603.*
- 22.6 Fed. R. Evid. 407.
- 22.7 GPRR 719–27.
- 22.8 *Hickman v. Taylor*, 329 U.S. 495 (1947) (syllabus).
- 22.9 GPRR 735–50.

23 Oct. 23 (TH): Discovery tools

- 23.1 Rules 16, 26(a), (d)–(f), 29–36, 45.
 - 23.1.1 *Pending Amendments to Rules 16(b), 26(f).*
- 23.2 GPRR 752–66, 777–88.

24 Oct. 24 (F): E-discovery; discovery sanctions

- 24.1 GPRR 766–67.
 - 24.1.1 *E-Discovery Q&A*. <https://bit.ly/3ztvw3W>
 - 24.1.2 *Andrew Peck, Search, Forward, Law Tech. News, Oct. 2011.*
 - 24.1.3 *Statutes Concerning Magistrate Judges*. <https://bit.ly/4eLVobn>
 - 24.1.4 *Rules 72–73.*
 - 24.1.5 *GPRR 767–73.*
- 24.2 GPRR 773–77.
- 24.3 Rule 26(g), 37.
- 24.4 28 U.S.C. § 1927.
- 24.5 GPRR 789–807.

Assignment 3 released

Optional:

- John H. Beisner, *Discovering a Better Way*, 60 Duke L.J. 547 (2010).

- Dana Remus, *The Uncertain Promise of Predictive Coding*, 99 Iowa L. Rev. 1691 (2014).

TRIAL AND JUDGMENT

25 Oct. 29 (w): Dismissal; settlement; summary judgment

25.1 Rules 41, 56, 68.

25.2 GPRR 919–20.

25.2.1 GPRR 921–23.

25.3 GPRR 924–30.

25.3.1 Frank H. Easterbrook, Justice and Contract in Consent Judgments, 1987 U. Chi. Legal F. 19.

25.3.2 Anthony DiSarro, Six Degrees of Separation: Settlement Agreements and Consent Orders in Federal Civil Litigation, 60 Am. U. L. Rev. 275 (2010).

25.4 GPRR 930–32.

25.4.1 Corrugated Paper Prods., Inc. v. Longview Fibre Corp., 868 F.2d 908 (7th Cir. 1989).

25.5 GPRR 932–33.

25.5.1 GPRR 934–40, 950, 952–56.

25.6 *Celotex Corp. v. Catrett*, 477 U.S. 317 (1986) (syllabus).

25.6.1 GPRR 962–64 (Q. 1–4).

25.7 GPRR 966–67.

Optional:

- Bradley Scott Shannon, *Dismissing Federal Rule of Civil Procedure 41, 52* U. Louisville L. Rev. 265 (2014).
- Owen Fiss, *Against Settlement*, 93 Yale L.J. 1073 (1984).
- Maria Glover, *The Federal Rules of Civil Settlement*, 87 N.Y.U. L. Rev. 1713 (2012).
- Michael T. Morley, *Consent of the Governed or Consent of the Government?*, 16 U. Penn. J. Const. L. 637 (2014).
- *Tolan v. Cotton*, 572 U.S. 650 (2014) (*per curiam*).
- Nancy Gertner, *Losers' Rules*, 122 Yale L.J. F. 109 (2012).

26 Oct. 30 (TH): Jury trial

26.1 U.S. Const. amend. VII.

26.2 Rules 38–40, 42 (*review*), 47–49.

26.3 GPRR 969–76.

26.3.1 GPRR 977–80.

26.4 GPRR 981–84, 992–1002 (*start at “V”*).

26.4.1 28 U.S.C. §§ 1861–1862, 1865, 1870.

26.4.2 Rules 51–53.

26.4.3 GPRR 1031–33, 1043 (opening of “IV”).

26.5 GPRR 1054–55.

26.5.1 John H. Langbein, The Disappearance of Civil Trial in the United States, 122 Yale L.J. 522 (2012).

Optional:

- Brian C. Kalt, *The Perfect Crime*, 93 Geo. L.J. 675 (2005).
- H. Gibson Rivington & A. Clifford Fountaine, *Snell’s Principles of Equity* 11–24 (17th ed. 1925). <https://bit.ly/3xM6yff>
- James Grimmelman, *Koans of Equity*, 58 J. Legal Educ. 472 (2008).
- Suja Thomas, *Why Summary Judgment is Unconstitutional*, 93 Va. L. Rev. 139 (2007).

27 Oct. 31 (F): Judgment and remedies

27.1 Rules 54(a)–(c), 58, 77(d).

27.1.1 Trial Transcript vol. 2, McBride v. CSX Transp., Inc., No. 06-cv-1017 (S.D. Ill. Aug. 19, 2008), at 234–38 (excerpt). <https://bit.ly/3L6iEmW>

27.1.2 Judgment, McBride (review).

27.2 Douglas Laycock, *Modern American Remedies* 1–9 (4th ed. 2010).

27.3 Rules 57, 64–65, 69–71.

27.3.1 28 U.S.C. §§ 1961(a)–(b).

27.4 Notes on Remedies. <https://bit.ly/4cqKxCc>

27.5 *Fuentes v. Shevin*, 407 U.S. 67 (1972).

27.6 *Univ. of Tex. v. Camenisch*, 451 U.S. 390 (1981).

27.7 *Zenith Radio Corp. v. Hazeltine Res., Inc.*, 395 U.S. 100 (1969).

27.8 28 U.S.C. §§ 2201–2202.

27.8.1 Trump v. CASA, 145 S. Ct. 2540 (2025).

Optional:

- Samuel L. Bray, *The System of Equitable Remedies*, 63 UCLA L. Rev. 530 (2016).
- Samuel L. Bray, *Multiple Chancellors: Reforming the National Injunction*, 131 Harv. L. Rev. 417 (2017).

POST-JUDGMENT PROCEDURES

28 Nov. 5 (w): Post-trial procedures

- 28.1 Rules 50, 59–61.
- 28.2 GPRR 1003–18, 1023–30 (*start with note 3*), 1057–59.
- 28.3 12 Moore’s Federal Practice—Civil § 59.13.
- 28.4 GPRR 1066–69 (*notes 1–4*), 1073, 1084–86.

Assignment 3 due

29 Nov. 6 (TH): Appeals

- 29.1 28 U.S.C. §§ 1254, 1257, 1291, 1292(a)–(b), (e), 2107, 2111.
- 29.2 Rule 23(f) (*review*).
- 29.3 Fed. R. App. P. 1, 3, 4(a), (d).
 - 29.3.1 Fed. R. App. P. 5(a); Forms 1A–1B.*
- 29.4 GPRR 1089–93 (*including introduction to “III”*).
- 29.5 Rules 46, 51, 62.
 - 29.5.1 Fed. R. Evid. 103(a)–(b), (e).*
- 29.6 GPRR 1097–98 (*first portion of Q.4*), 1099–1102 (*start with note 7*).
 - 29.6.1 GPRR 1103–06.*
- 29.7 GPRR 1106–10.
 - 29.7.1 GPRR 1110–12.*
- 29.8 GPRR 1112–20, 1124–30.

Assignment 4 released

30 Nov. 7 (F): Mandamus; claim preclusion

- 30.1 28 U.S.C. § 1651.
- 30.2 GPRR 1120–24, 1131, 1133–60, 1163–65 (*start with note 4*).

31 Nov. 12 (w): Issue preclusion; judicial estoppel

- 31.1 GPRR 1167–69.
- 31.2 Restatement (Second) of Judgments §§ 27–28.
- 31.3 GPRR 1169–75.
- 31.4 *Cambria v. Jeffrey*, 29 N.E.2d 555 (Mass. 1940).
- 31.5 GPRR 1183–87 (*sections C–E*), 1189–1201, 1206–07.
- 31.6 *New Hampshire v. Maine*, 532 U.S. 742 (2001).

Optional:

- Brainerd Currie, *Mutuality of Collateral Estoppel: Limits of the Bernhard Doctrine*, 9 Stan. L. Rev. 281 (1957).

STATE LAW IN FEDERAL COURT

32 Nov. 13 (TH): Background to *Erie*

- 32.1 28 U.S.C. § 1652.
- 32.2 N.Y. Const. of 1777, art. xxxv. <https://bit.ly/4bKN0GB>
- 32.3 *Swift v. Tyson*, 41 U.S. (16 Pet.) 1 (1842).
- 32.4 Reception Provisions of Virginia/Kentucky. <https://bit.ly/45P8nVw>
- 32.5 GPRR 811–29.
 - 32.5.1 *Stephen E. Sachs*, *Finding Law*, 107 Cal. L. Rev. 527 (2019).
 - 32.5.2 *Caleb Nelson*, *A Critical Guide to Erie Railroad Co. v. Tompkins*, 54 Wm. & Mary L. Rev. 921 (2012).

(You are encouraged, though by no means required, to read these articles in full, at <https://bit.ly/3oNcWLv> and <https://bit.ly/3jdNBX8>.)

Optional:

- Michael G. Collins, *Justice Iredell, Choice of Law, and the Constitution—A Neglected Encounter*, 23 Const. Comment. 163 (2006).
- Brian L. Frye, *The Ballad of Harry James Tompkins*, 52 Akron L. Rev. 531 (2019).
- William A. Fletcher, *General Common Law and Section 34 of the Judiciary Act of 1789: The Example of Marine Insurance*, 97 Harv. L. Rev. 1513 (1984).
- Ernest A. Young, *A General Defense of Erie Railroad Co. v. Tompkins*, 10 J. L. Econ. & Pol’y 17 (2013).

33 Nov. 14 (F): *Klaxon*; “federal common law”

33.1 GPRR 829–50.

33.2 *Boyle v. United Techs. Corp.*, 487 U.S. 500 (1988).

33.2.1 *Stephen E. Sachs, Pennoyer Was Right*, 95 *Tex. L. Rev.* 1249, 1249–50, 1255–69 (2017).

Optional:

- Stephen E. Sachs, *Constitutional Backdrops*, 80 *Geo. Wash. L. Rev.* 1813 (2012).
- Stephen E. Sachs, *Life After Erie* (Nov. 1, 2023), <https://ssrn.com/id=4633575>
- Caleb Nelson, *The Legitimacy of (Some) Federal Common Law*, 101 *Va. L. Rev.* 1 (2015).
- Caleb Nelson, *The Persistence of General Law*, 106 *Colum. L. Rev.* 503 (2006).

34 Nov. 19 (w): Substance and procedure

34.1.1 *Historical Statutes on Federal Procedure*. <https://bit.ly/3RUF5z4>

34.2 28 U.S.C. §§ 2071–2074.

34.3 GPRR 851–52.

34.3.1 *GPRR 852–61 (end at note 7)*.

34.4 GPRR 861–62 (*note 8*).

34.4.1 *Byrd v. Blue Ridge Rural Elec. Coop.*, 356 *U.S.* 525 (1958).

34.5 GPRR 862–75.

34.6 *Hanna Procedure Chart*. <https://bit.ly/3xLyvnL>

Optional:

- Letter from Logan T. Mohs & Stephen E. Sachs to Comm. on Rules of Practice & Procedure (Nov. 1, 2012), <https://bit.ly/3oK7zfV>.
- Suzette Malveaux, *A Diamond in the Rough: Trans-Substantivity of the Federal Rules of Civil Procedure and its Detrimental Impact on Civil Rights*, 92 *Wash. U. L. Rev.* 455 (2014).
- Anthony J. Bellia Jr. & Bradford R. Clark, *The Original Source of the Cause of Action in Federal Courts*, 101 *Va. L. Rev.* 609 (2015).
- Stephen B. Burbank, *The Rules Enabling Act of 1934*, 130 *U. Pa. L. Rev.* 1015 (1982).

35 Nov. 20 (TH): Substance and procedure, continued

- 35.1 *Shady Grove Orthopedic Assocs., P.A. v. Allstate Ins. Co.*, 559 U.S. 393 (2010). (Note: The dueling opinions in this case are long, but they're also the richest discussion of these issues to date.)

35.2 GPRR 886–90.

Assignment 4 due

Optional:

- John Hart Ely, *The Irrepressible Myth of Erie*, 87 Harv. L. Rev. 693 (1974).

CONCLUSION

36 Nov. 21 (F): Incentives; alternatives; summary

36.1.1 *Buckhannon Bd. & Care Home, Inc. v. W. Va. Dep't of Health & Human Res.*, 532 U.S. 598 (2001).

36.2 9 U.S.C. §§ 2–4, 7, 9–11, 13, 16.

36.2.1 *AT&T Mobility LLC v. Concepcion*, 563 U.S. 333 (2011).

36.2.2 *John H. Langbein*, *The German Advantage in Civil Procedure*, 52 *U. Chi. L. Rev.* 823 (1985), <https://bit.ly/3zBWV3v>.

Optional:

- James W. Hughes & Edward A. Snyder, *Litigation and Settlement Under the English and American Rules: Theory and Evidence*, 38 *J.L. & Econ.* 225 (1995).
- Roger Michalski & Andrew Hammond, *Mapping the Civil Justice Gap in Federal Court*, 57 *Wake Forest L. Rev.* 463 (2022).
- Eric Helland & Alexander Tabarrok, *The Effect of Electoral Institutions on Tort Awards*, 4 *Am. L. & Econ. Rev.* 341 (2002).

EXAM

Dec. 8 (M): Final exam

- *Skim the entire Federal Rules of Civil Procedure, including any pending amendments.*
- John H. Langbein, *Writing Law Examinations* (rev. 2010), <https://bit.ly/3h5rVdG>.